

25VECV05242 25VECV05242

County: los-angeles
Division: Civil Law and Motion
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Case Number: 25VECV05242 Hearing Date: September 24, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

TONI AND
JOHN STAPLEY. individuals,

Plaintiffs,

vs.

MODERNIZE
REMODELING. INC. A California Company; AND DOES through 10. inclusive,

Defendant.

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CASE NO.: 25VECV05242

ORDER

DENYING PLAINTIFFS' MOTION TO SERVE THE SECRETARY OF STATE PURSUANT TO
CORPORATIONS CODE SECTION 1702

I.

BACKGROUND

Plaintiffs Toni and John

Stapley (jointly, "Plaintiffs") allege Defendant Modernize Remodeling, Inc.

("Defendant") deprived Plaintiffs of money in the amount of \$1,000,000.

Plaintiffs allege they agreed to purchase solar panels, a new roof and backyard
landscaping for the sum of \$91,820 from Defendant's agent, Ryan Moshe ("Moshe").

Plaintiffs allege Moshe obtained 10 loans on behalf of Plaintiffs at a high
interest rate, despite Plaintiffs only authorizing the initial loan for the
services. Plaintiffs further allege Defendant failed to provide quality
products for the agreed-upon services.

Plaintiffs now move for

an order allowing service of the summons and Complaint upon Defendant via the Secretary of State

II.

PROCEDURAL

HISTORY

On September

15, 2025, Plaintiffs filed a Complaint alleging (1) Fraudulent Misrepresentation; (2) Breach of Contract; and (3) Elder Abuse-Financial.

On May 20,

2026, Plaintiffs filed a Notice of Related Case for Case No. 24V00629NCV. (The correct Case No. is 24VECV00629. The Notice of Related Case was rejected in that action.)

On July 22,

2026, Plaintiffs filed the instant Motion.

On September

21, 2026, Plaintiffs filed Supplemental Declarations after the Motion was denied.

III.

LEGAL STANDARD

Code of Civil

Procedure § 416.10[1] provides that a summons may be served on corporation, if authorized, by any provision in Corporations Code §§ 1701, 1702, 2110, or 2111.

Corporations

Code § 1702(a) provides if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Code of Civil Procedure §§ 415.10(a) (personal service), 415.20(a) (substitute service) or 415.30(a) (service by mail), or upon the corporation in the manner provided in § 416.10(a)-(c) (service on an agent or principal) or § 416.20(a) (service on a trustee),

the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service. (See Corp. Code, § 1702(a).) Service in this manner is deemed complete on the tenth day after delivery of the process to the Secretary of State. (Id.)

IV.

ANALYSIS

The Court

will deny the Motion. Plaintiffs have not shown process cannot be served with reasonable diligence upon the corporation by any other authorized method. (See Corp. Code § 1702(a).) Plaintiffs' counsel attests she: attempted to serve Defendant's counsel, who declined to accept service on Defendant's behalf; retained a private investigator who provided a new address (19224 Hartland Street) for Defendant's purported owner, David Lankry, but service was unsuccessful; and confirmed Defendant's last known address with the Department of Justice, but this address was already known to Plaintiff's counsel. (See Declaration of Margot Nelson filed September 21, 2026, ¶¶ 6-8, 12; Declaration of Non-Service.)

Toni Stapley attests

she visited three addresses where service was attempted, including 19224 Hartland Street, but could not locate Defendant or its owner or principal. (See Declaration of Toni Stapley filed September 21, 2026, ¶¶ 3-4.) Plaintiff attests "Based on what I personally observed, it did not appear that Modernize Remodeling, Inc. or its owner or principal was present at, or likely to be found at, any of those locations." (Id., ¶ 4.) Plaintiff also contacted a plumber who performed work on Defendant's project, but he did not have contact information for Defendant. (See id., ¶ 5.)

As the Court noted

in its previous order, Plaintiffs do not show they attempted service by mail with acknowledgment of receipt at the 19224 Hartland Street address. (See Code Civ. Proc. § 415.30(a).) The Court notes the process server declared he was unable to serve the documents at this residential address because the home is gated and he could not get past the gate. (See Declaration of Non-Service.) The process server also noted "No activity noticed on premises." (Id.)

Plaintiff states it did not appear to her that David Lankry was present or likely to be found at the 19924 Hartland Street address, but she does not specify facts (e.g. the property is boarded up) that would lead the Court to find that further service attempts at this address would be futile.

Accordingly, the Court finds service at 19924 Harland Street remains a viable service address. Because Plaintiffs have not exhausted the notice and acknowledgment service method on David Lankry at 19924 Harland Street, the Court finds Plaintiffs have not shown that process cannot be served with reasonable diligence on the corporation by any other authorized method.

Thus, the
Court DENIES Plaintiffs' Motion to Serve the Secretary of State.

V.

CONCLUSION

Based on the
foregoing, the Court DENIES Plaintiffs' Motion to Serve the Secretary of State.

IT
IS SO ORDERED.

DATED: September 24, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.